



CHAPTER xxviii.

An Act to amend certain provisions of the Medway Conservancy Act 1881 relating to proxies and to vessels sunk or stranded.

A.D. 1926.

[30th June 1926.]

WHEREAS by the Medway Conservancy Act 1881 (hereinafter called "the Act of 1881") the Conservators of the River Medway (hereinafter called "the Conservators") were incorporated and authorised to exercise various powers over or connected with the conservancy regulation management and improvement of part of the River Medway :

And whereas the part of the River Medway within the jurisdiction of the Conservators and to which the Act of 1881 applies is defined by section four of the Act of 1881 and shown on the map or plan therein referred to and is in the Act of 1881 and hereinafter referred to as "the river" :

And whereas by section forty of the Act of 1881 it is provided that no person shall be capable of acting as a proxy at elections of Conservators except an elector or in the case of a firm or body corporate a member of such firm or a member or officer of such body corporate and it is expedient that a firm or body corporate should be authorised to appoint an elector to act as such proxy as aforesaid :

And whereas by section one hundred and twenty of the Act of 1881 the Conservators were authorised

A.D. 1926. — to cause vessels sunk or stranded in the river to be weighed and raised or if it should be impracticable to weigh and raise the same to cause such vessel to be blown up or otherwise destroyed so as to clear the river therefrom and in case such vessels should be weighed and raised to cause the same and the furniture tackle and apparel thereof and also the goods which might be found on board the same to be sold and out of the proceeds of such sale to pay the charges and expenses of weighing and raising such vessel or the blowing up or otherwise clearing the river therefrom and in case the proceeds of such sale should be insufficient to defray such charges and expenses the deficiency should be paid to the Conservators by the master or owner of such vessel on demand and in default of payment be recovered as by the said Act was directed :

And whereas doubts have arisen in certain cases as to who may be the masters or owners of the said vessels within the meaning of the said Act and as to what expenses may be recovered from such masters or owners and it is expedient that such doubts should be removed and that such provision should be made as regards such matters as are contained in this Act :

And whereas the objects of this Act cannot be obtained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title
and con-
struction.

1. This Act may be cited as the Medway Conservancy Act 1926 and shall be construed as one with the Act of 1881 and the Act of 1881 and the Medway Conservancy Act 1919 and this Act may be cited together as the Medway Conservancy Acts 1881 to 1926.

Amend-
ment of
section 40
of Act of
1881.

2. Notwithstanding the provisions of section forty of the Act of 1881 a firm or body corporate may by such instrument as is in the said section mentioned appoint any person being an elector to be a proxy for the purposes of voting at elections of Conservators.

3. Section 120 of the Act of 1881 shall in the case of a vessel sunk stranded or abandoned after the first day of January one thousand nine hundred and twenty-six have effect as if the following section had been originally inserted therein in substitution for the said section :—

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Amend-
ment of
section 120
of Act of
1881.

(1) Whenever any vessel is sunk stranded or abandoned in any part of the river the Conservators may cause the vessel to be raised or in the case of any vessel which it is not reasonably practicable to remove to be blown up or otherwise destroyed in such manner as to clear the river therefrom :

(2) The Conservators may recover from the owner all expenses incurred by the Conservators under this section in connection therewith or in raising or saving any furniture tackle and apparel of the said vessel or any goods chattels and effects raised or saved from such vessel or in marking lighting watching buoying or otherwise controlling such vessel either summarily as a civil debt or as a debt in any court of competent jurisdiction. Provided always that the Conservators may if they think fit and shall if so required by the owner cause any vessel furniture tackle apparel goods chattels and effects or any part of the same respectively so raised or saved as aforesaid to be sold in such manner as they think fit and out of the proceeds of the sale may after paying any duties of customs or excise which shall be payable in respect of the said goods chattels and effects reimburse themselves for any such expenses and shall hold the surplus if any of those proceeds in trust for the persons entitled thereto and in case such proceeds shall be insufficient to reimburse the Conservators such expenses the deficiency may be recovered by the Conservators in manner aforesaid :

(3) The Conservators shall (except in case of emergency) give to the owner of the vessel twenty-four hours' previous notice in writing before raising blowing up or destroying the vessel and the owner shall on giving twelve hours' notice after the expiration of such notice be at liberty forthwith himself to raise and remove the vessel ;

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(4) The Conservators shall (except in case of emergency or when required by the owner to sell) before selling under the provisions of this section any such vessel give to the owner of the vessel seven days' notice of their intention to sell the same by posting a prepaid letter addressed to the owner at the place in the United Kingdom where he carries on business or at his last known place of abode in the United Kingdom or if the owner or his place of business or abode is not known to the Conservators then before selling the vessel a like notice shall be exhibited by the Conservators for seven days at the head office of the Conservators:

(5) Nothing in this Act shall have effect so as to prejudice any powers or duties of the Receiver of Wrecks under Part IX. of the Merchant Shipping Act 1894:

(6) The provisions of this section shall not apply to any ship vessel or boat belonging to His Majesty or for the time being employed by any department of His Majesty's Government:

(7) In this section the word "owner" in relation to any vessel sunk stranded or abandoned in the river means the owner of that vessel at the time of the sinking stranding or abandonment thereof.

Costs of
Act.

4. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act shall be defrayed by the Conservators out of the Conservancy Revenue Fund established by the Act of 1881.

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